

## **Tentative Rulings and Resolution Review Hearings**

**May 26, 2026**

**Department 63**

**This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website ([www.shasta.courts.ca.gov](http://www.shasta.courts.ca.gov)) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.**

**Telephonic appearances through CourtCall (888-882-6878; [courtcall.com](http://courtcall.com)) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.**

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**8:30 a.m. – Law & Motion**

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**IN RE: CLAREY**

**CASE NUMBER: 26CV-0210037**

**Tentative Ruling on Petition for Change of Name:** Petitioner seeks to change the last name of her minor daughter. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Proof of Unsuccessful Service was filed on March 27, 2026. Additionally, proof of publication is required before the Court can consider granting the Petition. The Court intends to continue the hearing to a date that allows for sufficient time for service and publication. **An appearance by Petitioner is necessary on today's calendar.**

**GARCIA-BROWER VS. SHACK, INC.**

**CASE NUMBER: 25CV-0209453**

**Tentative Ruling on Petition to Compel Witness to Respond to Investigative Subpoena:** Petitioner Lilia Garcia-Brower, Labor Commissioner, seeks an order compelling Respondent Shack, Inc. to respond to an Investigative Subpoena issued by the State of California, Department of Industrial Relations Division of Labor Standards Enforcement (DLSE) on October 21, 2025. Petitioner has provided evidence that a valid Investigative Subpoena issued and that enforcement of the subpoena falls within the jurisdiction of this Court. Notice of Order to Show Cause Hearing Re Petition to Compel Witness to Respond to the Investigative Subpoena Issued by the Labor Commissioner and Order to Show Cause was executed by the Court on March 16, 2026. The Order was personally served on Respondent through the Agent for Service of Process on March 27, 2026. Additionally, the owner of Respondent business has been personally served. Respondent has provided no written response to the Order to Show Cause. **An appearance by both parties is necessary on today's calendar. Should Respondent not appear, Petitioner should be prepared present the Court with any additional orders Respondent requests pursuant to Gov. Code § 11188.**

**HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.**

**CASE NUMBER: CVPO21-0198083**

**Tentative Ruling on Motion to Quash Deposition Subpoenas:** Non-party Deponents Antonio Gambino, Teresa Chupp, and Deborah Olsen move to quash deposition subpoenas issued by Plaintiffs. The non-party deponents are represented by the Attorney General of California. The motion is opposed by Plaintiffs, who issued the deposition subpoenas. As a preliminary matter, the Court finds that non-party deponents have standing to move to quash deposition subpoenas issued to them.

The Attorney General has established that the deponents, while state employees, were performing a federal function in conducting the investigations. *Decl. Gilchrist*, ¶ 3. Plaintiffs have presented no evidence to the contrary.

No employee or former employee of the DHHS may provide testimony or produce documents in any proceedings to which this part applies concerning information acquired in the course of performing official duties or because of the person's official relationship with the Department unless authorized by the Agency head pursuant to this part based on a determination by the Agency head, after consultation with the Office of the General Counsel, that compliance with the request would promote the objectives of the Department.

45 C.F.R. § 2.3.

The Agency head for Centers for Medicare and Medicaid Services (“CMS”) is the Administrator. 45 C.F.R. § 2.2(7). Here, the deponents move to quash the subpoenas and ask that Plaintiffs proceed with the standard procedure of seeking authorization from the head of DHHS, which is exactly what Plaintiffs did when they deposed Joanne Gilchrist last year. While Plaintiffs argue that “DHHS eventually agreed with plaintiffs position and withdrew their objections to the deposition of Ms. Gilchrist,” the letter attached as Exhibit A makes it clear that authorization was granted under 45 C.F.R. § 2.3. While the Court sympathizes with Plaintiffs in the urgency given the upcoming trial date, there is nothing before the Court that leads the Court to find that these subpoenas are not subject to the federal prohibition. The subpoenas issued clearly seek information regarding investigations conducted for CMS, which is a federal agency.

The motion to quash is **GRANTED**. The moving parties did not provide a proposed Order as required by Local Rule of Court 5.17(D). The Attorney General is to prepare the Order.

#### **IN RE: HOWE**

**CASE NUMBER: 26CV-0209893**

**Tentative Ruling on Petition for Change of Name:** Petitioner Sharon Elizabeth Howe seeks to change her name to Sharon Rose-Elizabeth Howe. The matter was originally on calendar for hearing on April 27, 2026 and the matter was continued for Petitioner to file the original Certificate of Publication, which has not been filed. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the original Certificate of Publication (not a copy) is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

#### **IN RE: JESSUP**

**CASE NUMBER: 26CV-0210019**

**Tentative Ruling on Petition for Change of Name:** Petitioner Micheal Joseph Jessup seeks to change his name to Michael Joseph Jessup. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

#### **PARRISH VS. ALLIANCE RV, LLC, ET AL.**

**CASE NUMBER: 25CV-0207009**

**Tentative Ruling on Motion for Summary Judgment or Adjudication:** In Case No. 200709 Defendants RV Retailer Idaho, LLC dba Blue Compass RV and Alliance RV, LLC filed a joint Motion for Summary Judgment on December 17, 2025 that was noticed for March 9, 2026. On January 30, 2026, the parties in Case Nos. 207009 and 208691 filed a joint stipulation to consolidate the two matters. The accompanying Order was executed on February 4, 2026 and continued the March 9, 2026 hearing to May 26, 2026. Plaintiff has not filed an Opposition to the motion and there is nothing before the Court to indicate that Plaintiff was provided proper notice of the